

STATE OF NEW YORK

7003--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 18, 2025

Introduced by M. of A. WALSH, MAHER, ANGELINO, E. BROWN, MANKTELOW, DURSO, MORINELLO, DiPIETRO, BLANKENBUSH, GANDOLFO, MOLITOR, PAULIN, SEMPOLINSKI, TAGUE, LEMONDES -- read once and referred to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the criminal procedure law, in relation to modifying the statute of limitations for certain sex crimes; and to amend the social services law, in relation to certain actions relating to human trafficking

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraphs (a) and (a-2) of subdivision 2 and paragraph (f)
2 of subdivision 3 of section 30.10 of the criminal procedure law, para-
3 graph (a) as amended and paragraph (a-2) of subdivision 2 as added by
4 chapter 315 of the laws of 2019 and paragraph (f) of subdivision 3 as
5 amended by chapter 11 of the laws of 2019, are amended to read as
6 follows:

7 (a) A prosecution for a class A felony, or rape in the first degree as
8 defined in section 130.35 of the penal law, or a crime defined or
9 formerly defined in section 130.50 of the penal law, or aggravated sexu-
10 al abuse in the first degree as defined in section 130.70 of the penal
11 law, or course of sexual conduct against a child in the first degree as
12 defined in section 130.75 of the penal law, or incest in the first
13 degree as defined in section 255.27 of the penal law, or sex trafficking
14 as defined in paragraph (a) or (b) of subdivision five of section 230.34
15 of the penal law, or sex trafficking of a child as defined in section
16 230.34-a of the penal law may be commenced at any time;

17 (a-2) A prosecution for rape in the third degree as defined in subdi-
18 vision one or three of section 130.25 of the penal law, or criminal
19 sexual act in the third degree as defined in former subdivision one or
20 three of section 130.40 of the penal law or sex trafficking as defined

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 in subdivision one, two, three, four or paragraph (c), (d), (e), (f),
2 (g) or (h) of subdivision five of section 230.34 of the penal law must
3 be commenced within ten years after the commission thereof;

4 (f) For purposes of a prosecution involving a sexual offense as
5 defined in article one hundred thirty of the penal law, other than a
6 sexual offense delineated in paragraph (a) of subdivision two of this
7 section, committed against a child less than eighteen years of age,
8 incest in the first, second or third degree as defined in sections
9 255.27, 255.26 and 255.25 of the penal law committed against a child
10 less than eighteen years of age, or use of a child in a sexual perform-
11 ance as defined in section 263.05 of the penal law, or sex trafficking
12 as defined in section 230.34 of the penal law committed against a person
13 less than eighteen years of age the period of limitation shall not begin
14 to run until the child has reached the age of twenty-three or the
15 offense is reported to a law enforcement agency or statewide central
16 register of child abuse and maltreatment, whichever occurs earlier.

17 § 2. Paragraph (ii) of subdivision (c) of section 483-bb of the social
18 services law, as added by chapter 311 of the laws of 2021, is amended to
19 read as follows:

20 (ii) An action brought pursuant to this subdivision shall be commenced
21 within fifteen years of the date on which the trafficking victim was
22 freed from the trafficking situation or, if the victim was a minor when
23 the act of human trafficking against the victim occurred, within fifteen
24 years after the date the victim attains the age of majority. Nothing in
25 this subdivision shall be construed to require that a criminal charge be
26 brought or a criminal conviction be obtained as a condition of bringing
27 a civil cause of action or receiving a civil judgment pursuant to this
28 subdivision or be construed to require that any of the rules governing a
29 criminal proceeding be applicable to any such civil action.

30 § 3. This act shall take effect immediately and shall apply to acts
31 occurring on or after such effective date and to acts occurring prior to
32 such effective date where the applicable statute of limitations in
33 effect on the date of such has not yet expired.